

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUOE038599: DULCE SOFIA GONZALEZ FLORES vs DIVERSIFIED
RESTAURANT GROUP, LLC., et al.
08/06/2026 in Department 44
Motion to amend the answer**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant’s Motion for Leave to Amend the Answer

Tentative Ruling:

The Court previously continued this matter when it came on for hearing on July 13, 2026, to **August 6, 2026**, at 8:30 a.m. for Defendant to comply with California Rule of Court, rule 3.1324(a). Defendant shall file compliant papers **on or before July 28, 2026**.

Defendant did not file any papers, nor lodge the proposed amended pleading with the Court. Accordingly, Defendant’s motion is DENIED without prejudice.

Courts have discretion to allow amendments to any pleading. (Code Civ. Proc., § 473, subd. (a)). A court’s discretion should usually be exercised liberally to permit amendment of the pleadings. (*Nestle v Santa Monica* (1972) 6 Cal.3d 920, 939.) “That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901.” (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*City of Torrance v. Southern California Edison Co.* (2021) 61 Cal.App.5th 1071, 1091 [quoting

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Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428] [leave amended after sustaining of demurrer].)

Here, Defendant has shown good cause under Rule 3.1324(b) to add an affirmative defense with the information contained in the Declaration of Sean B. Gibbons. Plaintiff initially opposed Defendant's request because Defendant sought to amend with an ex parte application. To the extent Plaintiff would have been prejudiced by the Court granting the requested relief on an ex parte basis, that harm was ameliorated by the Court's order setting this matter for hearing with notice. Defendant's moving papers are still, however, deficient in that they do not include a copy of the proposed amendments as required by subsection (a) of the Rule. Accordingly, the motion is DENIED, for Defendant lack of compliance with Rule 3.1324, and Local Rule 4.07.

Defendant shall give notice.